

The Claremont City Council held a meeting on Wednesday, August, 10, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau – Absent
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

John P. Bohenko, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

A motion was made by Councilor Stone and seconded by Councilor Limoges to have Councilor Contois join Council by sitting alongside Council during meetings going forward.

Councilor Contois asked what the reasoning was for this motion, and stated it seemed mean spirited. Councilor Contois stated the pandemic is on-going and has immunocompromised family, and wants to continue to socially distance. Councilor Contois stated he can not socially distance sitting next to the rest of Council and needs at least six feet.

Councilor Stone stated there are no emergency orders in the state of New Hampshire regarding COVID-19

Roll call:

**Contois - no
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes**

Limoges - yes
Mooshian - no
Girard - yes
Motion carried 6-2

Councilor Mooshian stated he was shocked that the Council and elected body are discussing where fellow Councilors should be sitting. Councilor Mooshian stated not having issue with where Councilor Contois sits, and it's a disservice to the residents of Claremont by wasting time with such conversation. Councilor Mooshian stated he expects better from the Councilors.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor O'Hearne to accept the minutes of the July 22, 2022, City Council meeting.

Voice vote:
Contois – abstained
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Mooshian - yes
Girard - yes
Motion carried 7-0, 1 abstain

MAYOR'S NOTES

Mayor Girard noted the Block Party will be held this Saturday from 3:00PM to 8:00PM. Parks and Recreation Department will have a softball tournament on August 20th/21st.

CITY MANAGER'S REPORT

Mr. Bohenko reminded everyone that the Department of Public Works sent out a voluntary water conservation notice due to on-going drought situations.

Mr. Bohenko stated a paving schedule for Sugar River Drive will be coming out tomorrow, about 500 ft will be paved, East Green Mountain Road patching has been worked on with a few more spots left. Chloride treatments have been used for dust control. Petrin Heights complaints have been received; after the last storm, damage has been done to the dirt road. DPW staff will be working on this.

Mr. Bohenko stated he met on-site with a resident from two meetings ago, for the proceeding of removing encroachments on City Property by the rail trail. This has been reduced to a written document.

Councilor Koloski questioned the contract for landscaping relative to cemeteries, Mr. Bohenko assured Council it will remain in budget.

Councilor Contois asked for an update for the vacant Parks and Recreation director position. Mr. Bohenko noted interviews have been held, and currently in the process of reviewing candidates' references.

Councilor Contois stated on August 3rd there was a big fire and the Fire Department responded within four minutes. Councilor Contois commended the Fire Department and Chief Burr. Councilor Contois also commended Officer Christopher Allen talking a person down which resulted in no loss of life.

Councilor Koloski asked if SAU programs when using Claremont's Community Center, compensating the City. Mr. Bohenko will gather information and let the Council know.

APPOINTMENT TO BOARDS AND COMMITTEES

Parks and Recreation Commission

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne to appoint John P. Simonds to Alternate Seat 7 – Ward III of the Parks and Recreation Commission.

Voice vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Planning Board

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to appoint Nicholas Stone to Seat 8 of the Planning Board.

Voice vote:

Contois - yes

O'Hearne - yes

Stone - abstain

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 7-0, 1 abstain

CITIZEN'S FORUM

Mayor Girard reminded all that anyone can speak during Citizens Forum on non-agenda items for up to five minutes each.

Shawn McCarthy, Ward 1, member of the Cable Television Board, stated for the benefit of Claremont citizens the re-districting will now have five representatives for the House. Mr. McCarthy stated he was a republican Candidate representing Claremont, and hopes Claremont has better representation in the State house with five representatives.

Ms. Hood, Ward 1, asked Council why surrounding towns have Fidum Fiber (fiber optic) and Claremont does not, Ms. Hood asked if there is anything Claremont can do to obtain this for the town. Mr. Bohenko stated this is something to be looked into. Ms. Hood also stated the lack of handicap accessibility to City Hall. Mr. Bohenko will also work with staff to look into this matter.

Robert Davis, Ward 1, asked how to prioritize roads that need to be paved. Mr. Davis stated crews have been on Sugar River Drive patching holes, but there are still many left to do. Mayor Girard responded that the City Manager will work with the DPW to collect this information.

Norm Blouin, Ward 3, stated he was informed prior to this meeting involving the dialysis center at Rite-aid, that the Dialysis center is looking for a new location in Newport, NH. Mr. Blouin shared concern for wasting tax-payers money relative to the Highway Department and downtown businesses.

Councilor Koloski asked to say a few words under personal privilege. Councilor Koloski stated the dialysis center topic has been addressed. Councilor Koloski had attended the Planning Board Meeting and pushed for the trucking situation to be passed, and noted all permits have been pulled.

OLD BUSINESS

None.

NEW BUSINESS

Proposed Amendment to Assessing Ordinance 565 Chapter 2, Article II, Division 8 Section 2-126

Recently the City has had great difficulty both recruiting for and retaining members of the Board of Assessors. This difficulty has at times created a set of circumstances that jeopardized the ability of important decisions being made on abatement claims and appeals of local abatement denials. These circumstances led the Assessor to recommend the following changes to the provisions of the City Sec. 2-126 and 2-127 of the City Code to allow greater flexibility for voting members of the Board of Assessors in certain circumstances and to reduce the onerous education requirements for membership on the board.

The current description of the City Assessor as ex-officio, non-voting member works in most circumstances, however a change to the role under very narrow circumstances will allow the Board of Assessors to continue its important work. This is particularly important as the work of the board has some very critical timing and deadlines.

As a Special Member, the only time that the City Assessor would be a voting would be when there is only one member available to meet a quorum, or to decide a tie vote when there are only two members available to vote.

The educational requirements for membership on the board is overly burdensome. There are benefits for members who can better understanding processes of assessing by completing State Statutes classes. The two classes are each one week in length, are conducted in person in Concord, and require significant commitment of time. This requirement has caused great difficulty in the recruitment and retention of members. Changing this from a requirement to an encouraged action will ease these burdens.

Steve Hamilton explained the proposed amendment to the assessing ordinance. Mr. Hamilton also Explained issues that will arise when only having one member, and the burden of having two one-week courses as a requirement for membership.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to disband Board of Assessors and bring back to the next Council Meeting on August 24th.

Roll call:

Contois - yes

O'Hearne - no

Stone - no

Matteau -yes

Koloski - yes

Limoges - no

Mooshian - yes

Girard - yes

Motion carried 5-3

Ordinance 595 Amendment One Way Pleasant Street – First Reading

CITY OF CLAREMONT

IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #595

“TRAFFIC AND MOTOR VEHICLES”

The City of Claremont Ordains:

Pursuant New Hampshire RSA 47:14 and RSA 265:10, and Chapter 19 (Traffic and Motor Vehicles), Article VI (Specific Street Regulations), Section 19-121 (One-Way Streets) of the City of Claremont Code is hereby amended as follows:

Section 1. Chapter 19, Article VI

Section 19-121 (One-Way Streets) is hereby amended to add the following locations:

Glidden Street, from Pleasant Street to Broad Street, east traffic flow only.
Pleasant Street, from Opera House Square to School Street, south traffic flow only.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 19, Article VI, Section 19-121 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is held to be unconstitutional or invalid for any reason, such decision shall not affect the remaining portions of this Ordinance.

A motion was made by Councilor Contois and seconded by Assistant Mayor Matteau to move Ordinance 595 to a second reading.

Councilor Contois read the explanation of proposed action into the record.

Roll call:

Contois - yes

O'Hearne - no
Stone - no
Matteau -yes
Koloski - yes
Limoges - yes
Mooshian - yes
Girard - yes
Motion carried 6-2

Ordinance 596 Amendment Weight Limit Restriction – First Reading

CITY OF CLAREMONT

IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #596

“TRAFFIC AND MOTOR VEHICLES”

The City of Claremont Ordains:

Pursuant New Hampshire RSA 47:17 and Chapter 19 (Traffic and Motor Vehicles), Article VI (Specific Street Regulations), Section 19-128 (Weight Limit – Ten Thousand and One Pounds or More) of the City of Claremont Code is hereby amended as follows:

Section 1. Chapter 19, Article VI

Section 19-128 (Weight Limit – Ten Thousand and One Pounds or More) is hereby amended to add the following location to the list of streets with such weight limitation:

(e) No commercial vehicle having a gross weight limit of ten thousand one (10,001) pounds or more as listed on its registration shall be operated on Pleasant Street, between Opera House Square and School Street, except for purposes of making deliveries to, providing services for, or going to or from a specific place on such section of Pleasant Street.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 19, Article VI, Section 19-128 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is held to be unconstitutional or invalid for any reason, such decision shall not affect the remaining portions of this Ordinance.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to move Ordinance 596 to a second reading.

Assistant Mayor Matteau read explanation of proposed action into the record.

Councilor O'Hearne stated there was an error in numbers for the weight limit.

Roll call:

Contois -yes

O'Hearne - no

Stone - no

Matteau -yes

Koloski - yes

Limoges - no

Mooshian - yes

Girard - yes

Motion carried 5-3

2023-2024 NHMA Legislative Policy Discussion

2023-2024 Legislative Policy Process

Important Dates & Updates!

FLOOR POLICIES DUE: August 12 POLICY CONFERENCE: September 23

The NHMA legislative policy process is moving forward! Below are the links to the proposed 2023-2024 Legislative Policy Positions and Legislative Principles, as recommended by NHMA's three policy committees. NHMA members will have an opportunity to vote on these proposals at the Legislative Policy Conference on September 23. *We urge each municipality's governing body, prior to the Legislative Policy Conference, to vote a position on the recommendations and floor proposals (see below) to provide direction to your voting delegate at the conference.* Otherwise, your delegate is free to cast your municipality's vote as he or she chooses.

In addition, any municipality with an interest in proposing an additional policy may do so through

the floor policy process, described below. We will be providing a copy of those floor policy proposals to members in advance of the policy conference.

NOTE: Please do not send your governing body's vote results or positions to NHMA. Your governing body's discussions and votes are only for the direction of your voting delegate. The only way a municipality may vote on these policies is to send a voting delegate to the policy conference on September 23.

Mayor Girard stated New Hampshire Municipal Association had their bi-annual meeting back in spring of this year. Mayor Girard asked for thoughts on what the Council wants to support or not support for the recommendations that the NHMA has put out. Councilor Mooshian was in support of the recommendations outlined by NHMA.

Councilor Stone stated he was not in support of this document.

Councilor Contois stated to be in support of the legislative process.

Councilor Koloski stated he was unable to make an educated decision at the moment.

Councilor O'Hearne stated he will be staying neutral on this topic in the event he is back in the State House next year.

Mayor Girard asked if anyone was interested in being the representative. Councilor Mooshian volunteered to be a representative for the Council, but asked for guidance on the stance of Council.

By consensus, Council agrees to have Councilor Mooshian represent the Council, and to bring this item back for discussion at the next Council Meeting.

Letter for Clarification

Councilor Contois asked for personal privilege to speak.

Mayor Girard explained that a local dealership representative came to the last meeting relative to a Council member speaking at a DES Board.

Councilor Contois asked why the Council would entertain these comments. Councilor Contois also noted there is no clarification necessary, and mentioned during the DES meeting it was clearly stated he was not representing the Council.

Councilor Contois also stated he did not oppose the plan, he only opposed filling in the wetlands.

Audio from the DES meeting when Councilor Contois spoke was played aloud for the Council.

Councilor Mooshian is not in support of any letters for clarification, Assistant Mayor Matteau expressed not needing a letter for clarification.

Councilor Mooshian suggested this topic could be sent to an ethics committee that he has suggested under future agenda items in previous Council meeting.

Mayor asked for a vote to either send a letter of clarification or not to. A yes vote will be for sending the letter, a no vote will be for not sending a letter of clarification

Councilor Contois refused to vote on item. Council reviewed the Council rules. Assistant Mayor Matteau noted Councilor Contois was in violation of Council rules.

Councilor Mooshian Motioned to table discussion.

Mayor Girard asked for a five-minute recess.

Mayor Girard took this time to use personal privilege and read a letter from Councilor Beliveau expressing his need to step down from the Council to focus on his business.

A motion made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept Councilor Beliveau's resignation.

Voice Vote :

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Mayor Girard suggested using the May 2021 advertisement for a vacant Council seat.

A motion made by Councilor Mooshian and seconded by Councilor Koloski to table agenda item E.

Voice Vote:

Contois - yes

O'Hearne - yes

Stone - no

Matteau - no

Koloski -no
Limoges - no
Mooshian - yes
Girard - no

3-5, motion does not pass

A motion made by Assistant Mayor Matteau and seconded by Councilor Stone to send a letter of clarification that Councilor Contois was not representing the Council at the DES meeting.

Councilor Contois refused to vote; Assistant Mayor Matteau explained this is a violation of Council rules.

Councilor Koloski suggested moving on with the vote and noting Councilor Contois's refusal, and suggests having Mr. Bohenko speak to legal as a separate issue.

Mayor Girard asked Ms. Richmond to start the Roll Call vote with Councilor O'Hearne.

Roll Call:

Contois - refuse
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski -yes
Limoges - yes
Mooshian - no
Girard – yes
Motion carried 6-1, 1 refusal

COMMITTEE REPORTS

Planning Board recommended the passage of zoning amendments relative to ADU's and downtown parking.

Conservation Commission testified against the filling of wet-land relative to the dealership on Charlestown Road. Additionally, the Ben Kilham Bear Program is coming to the senior Center in September.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asked to come up with a process or an update on how to select pieces of art-work for the downtown project.

Councilor O’Hearne shared concern for wasting money contacting legal over issues with Council members, and stated the Council is the governing body and can come up with ramifications if needed.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:00 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to adjourn.

Voice vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council